

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #13	CCRB Case #: 201510005	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 11/14/2015 5:25 AM	Location of Incident: § 87(2)(b)	Precinct: 42	18 Mo. SOL 5/14/2017	EO SOL 5/14/2017	
Date/Time CV Reported Sat, 11/14/2015 6:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/24/2015 11:07 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Lamont Gibson	05355	944594	PSA 7

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jose Concepcion	10651	953770	PSA 7
2. POM Matthew Mozdziak	13837	943590	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A.SGT Lamont Gibson	Abuse: Sgt. Lamont Gibson stopped § 87(2)(b)	§ 87(2)(b)
B.SGT Lamont Gibson	Force: Sgt. Lamont Gibson pointed his gun at § 87(2)(b)	§ 87(2)(b)
C.SGT Lamont Gibson	Force: Sgt. Lamont Gibson struck § 87(2)(b) with an asp.	§ 87(2)(b)
D.SGT Lamont Gibson	Abuse: Sgt. Lamont Gibson issued an improper summons to § 87(2)(b)	§ 87(2)(b)

Case Summary

On November 14, 2015, Capt. Jerry O’Sullivan of PSA 7 reported that § 87(2)(b) had been injured in police custody, generating IAB log number 15-35075. The case was received at the CCRB on November 24, 2015.

On November 14, 2015, at approximately 5:25 a.m., § 87(2)(b) was walking on Freeman Street in the Bronx towards a deli located at the intersection of Freeman Street and Prospect Avenue. An unmarked police vehicle pulled up next to § 87(2)(b) and two uniformed officers, Sgt. Lamont Gibson and PO Jose Concepcion of PSA 7, exited the vehicle and started walking towards § 87(2)(b). PO Matthew Mozdziak of PSA 7 was in the driver seat of the vehicle, and remained inside at that time. § 87(2)(b) immediately turned and started running eastbound on Freeman Street, and Sgt. Gibson and PO Concepcion chased him on foot (**Allegation A**). § 87(2)(b) denied having committed any crimes before approached by the officers.

§ 87(2)(b) turned left at the end of the block and ran north on § 87(2)(b). At the intersection of § 87(2)(b) and § 87(2)(b), § 87(2)(b) jumped over a fence into a private yard in an attempt to get away from the officers. When Sgt. Gibson and PO Concepcion reached this yard, Sgt. Gibson pointed his gun at § 87(2)(b) and told him to stop (**Allegation B**). As § 87(2)(b) attempted to jump over the railing in front of § 87(2)(b) to continue fleeing, Sgt. Gibson struck § 87(2)(b) in his face with his asp, causing a laceration near § 87(2)(b) s right eye (**Allegation C**). § 87(2)(b) gained possession of Sgt. Gibson’s asp as he was knocked backwards by the strike to his face, but Sgt. Gibson and PO Concepcion immediately grabbed § 87(2)(b) and brought him to the ground. § 87(2)(b) was placed in handcuffs and brought to the PSA 7 stationhouse for arrest processing. He was charged with § 87(2)(b).
§ 87(2)(b). He was also issued a summons for jaywalking (**Allegation D**). § 87(2)(b) was subsequently transported to § 87(2)(b), where he was given stitches for the laceration near his eye, painkillers, and also diagnosed with a fractured nasal bone.



2016-02-08_11-48-56.mp4

Mediation, Criminal, and Civil Histories

- This case was not suitable for mediation, due to § 87(2)(b) s arrest.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§ 87(2)(c)]
[§ 87(2)(b)] [§ 87(2)(c)]
- As of January 28, 2016, § 87(2)(b) had not filed a notice of claim with the city.

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CCRB Case # 201510005

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- Sgt. Lamont Gibson has been a member of service for eight years. In case 201005227, frisk and question allegations were substantiated against him. In case 201110762, a vehicle stop was substantiated against him. In total, Sgt. Gibson has previously been the subject of one vehicle search allegation, one gun drawn allegation, two frisk allegations, two search of person allegations, one question allegation, two stop allegations, and one vehicle stop allegation.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation A: Abuse of Authority – Sgt. Lamont Gibson stopped § 87(2)(b)

Allegation D: Abuse of Authority – Sgt. Lamont Gibson issued an improper summons to

§ 87(2)(b)

Sgt. Gibson (01 Board Review), PO Concepcion (02 Board Review), and PO Mozdziak (03 Board Review) all stated in their CCRB statements that the sole reason for their initial attempt to stop § 87(2)(b) was that they had observed him cross Freeman Street in the middle of the street, and thus intended to issue him a summons for jaywalking. This is the same rationale given in the arrest report prepared by PO Concepcion for the incident (04 Board Review). The officers denied that they had seen § 87(2)(b) commit any other crimes prior to approaching him, or that they had observed anything about his appearance or behavior that caused them to suspect him of having committed a crime.

In the call to the IAB Command Center by Capt. O'Sullivan to report the incident, Capt. O'Sullivan stated that the officers initially approached § 87(2)(b) because he was acting suspiciously between two parked cars (05 Board Review). This is the same basis for the stop

given in the UF-49 Capt. O’Sullivan prepared for the incident (06 Board Review). In neither the call to IAB nor the UF-49 does Capt. O’Sullivan mention that § 87(2)(b) had jaywalked. When confronted with this inconsistency, neither Sgt. Gibson nor PO Concepcion could offer any explanation. Sgt. Gibson maintained that the reason the officers stopped § 87(2)(b) was because he had been jaywalking, and that he had no memory of reporting any other reason to Capt. O’Sullivan. PO Concepcion denied having any knowledge of how Capt. O’Sullivan received his information regarding the incident.

It is undisputed that § 87(2)(b) crossed from the south side of Freeman Street to the north side, and that he did not use a crosswalk as he did so. Sgt. Gibson could not recall if § 87(2)(b) blocked any traffic as he crossed the street, nor could he recall if there were any other vehicles driving on Freeman Street at that time. PO Concepcion stated that there were other vehicles driving in that area, but he was inconsistent as to whether they were on Freeman Street or Prospect Avenue, and he could not say what direction the other vehicles were driving relative to the officers’ vehicle. PO Concepcion also could not say whether § 87(2)(b) obstructed the path of any of these vehicles as he crossed Freeman Street.

The summons PO Concepcion issued to § 87(2)(b) states that he was observed “walking into oncoming traffic,” which neither PO Concepcion nor his partners alleged in their CCRB statements (07 Board Review). PO Concepcion also cited an incorrect section of the New York Vehicle Traffic Law code on the summons, which does not correspond to jaywalking, despite his assertion to the CCRB that he issues approximately five summonses for jaywalking per month on average. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

There are two rules for jaywalking in New York City. The rules of New York City state, “No pedestrian shall cross a roadway except at a crosswalk on any block in which traffic control signals are in operation at *both* intersections bordering the block” (italics added) (08 Board Review). Section 1152 of the New York State Vehicle and Traffic Law states, “Every pedestrian crossing a roadway at any point other than within a marked crosswalk... shall yield the right of way to all vehicles on the roadway” (09 Board Review).

While the intersection of Freeman Street and Prospect Avenue has traffic signals in all directions, the other end of the block (Freeman Street and Chisholm Street) does not have any

traffic signals in place (10 Board Review). § 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

Allegation B: Force – Sgt. Lamont Gibson pointed his gun at § 87(2)(b)

It is undisputed that Sgt. Gibson pointed his gun at § 87(2)(b) and told him to stop after § 87(2)(b) jumped over a fence and entered the private yard of the residence at the southeast corner of the intersection of § 87(2)(b) and § 87(2)(b). It is also undisputed that the officers did not recognize § 87(2)(b) from any previous encounters prior to stopping him, they did not suspect him of any crimes except what they believed was a jaywalking violation, and they did not observe anything about § 87(2)(b)'s appearance or behavior prior to initially approaching him on Freeman Street which suggested he was armed or presented a safety threat to the officers.

Sgt. Gibson and PO Concepcion both stated that as they exited their vehicle to initially approach § 87(2)(b) on the sidewalk on Freeman Street, § 87(2)(b) turned around, reached down towards the front of his pants waistband, and started running away from the officers down Freeman Street with his hand still holding his waistband. Both officers stated that the manner in which § 87(2)(b) reached towards and held his waistband indicated he had a gun in his waistband. However, neither officer observed a bulge or outline of an object around § 87(2)(b)'s waistband; the sole reason they believed § 87(2)(b) to be armed was the motion he made towards his waistband.

§ 87(2)(g)

§ 87(2)(g)

PO Mozdziak stated that he could see § 87(2)(b) as he turned to run away, but he could not see whether § 87(2)(b) made any motions at that time. PO Mozdziak did not allege that § 87(2)(b) reached towards his waistband, or made any other furtive movements at that time. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Additionally, no items or contraband were recovered from § 87(2)(b) after his arrest, nor was anything found near the location of the arrest, despite the fact that the officers searched the scene after § 87(2)(b) was apprehended, and that ESU detectives searched the area further after § 87(2)(b) was transported to the PSA 7 stationhouse. Sgt. Gibson and PO Concepcion testified that § 87(2)(b) eventually began running in a normal fashion, with neither hand on his waistband, and this is also shown in the video of the incident when § 87(2)(b) runs past the front of § 87(2)(b) (11 Board Review).

§ 87(2)(g)

Both alleged that § 87(2)(b) was jumping at Sgt. Gibson when Sgt. Gibson struck § 87(2)(b) with his asp, despite being shown video of the incident which shows § 87(2)(b) jumping at an angle away from Sgt. Gibson, § 87(2)(g) (12 Board Review).

§ 87(2)(g)

§ 87(2)(b)'s medical records and the UF-49 prepared by Capt. O'Sullivan for the incident explicitly state that § 87(2)(b) was struck in the face with an asp, § 87(2)(g)

Capt. O'Sullivan's reports were created on the date of the incident and were based at least partially upon what Sgt. Gibson told him about the incident immediately after it happened (Sgt. Gibson was the only officer who admitted to speaking with Capt. O'Sullivan about the incident). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

An officer is allowed to point his gun at an individual if that person is behaving in a manner which reasonably causes the officer to fear for his safety. Police Department vs. Gliner OATH index No. 955/400 (2000) (15 Board Review).

§ 87(2)(g)

Allegation C: Force – Sgt. Lamont Gibson struck § 87(2)(b) in the face with an asp.

It is undisputed that Sgt. Gibson struck § 87(2)(b) with his asp as § 87(2)(b) jumped over the railing in front of § 87(2)(b). § 87(2)(b) alleged that this asp strike landed on his face, near his right eye § 87(2)(g)

It is also undisputed that this was the first physical contact between § 87(2)(b) and the officers. As discussed previously, the officers' sole basis for attempting to apprehend § 87(2)(b) was to issue him a summons for jaywalking, a nonviolent offense. Other than fleeing, § 87(2)(b) had not resisted the officers, and had not threatened their physical safety. Sgt. Gibson stated himself that he holstered his firearm after pointing it at § 87(2)(b) for several seconds, as he did not observe anything about § 87(2)(b) at that time which threatened the safety of the officers.

As discussed in **Allegation B**, Sgt. Gibson and PO Concepcion alleged that § 87(2)(b) was jumping at Sgt. Gibson when Sgt. Gibson struck him with his asp. Sgt. Gibson further stated that prior to jumping at him, § 87(2)(b) had assumed a fighting stance. When asked to describe

this fighting stance, Sgt. Gibson could only say that § 87(2)(b) looked like he was trying to get away from the officers, so he seemed ready to fight them. § 87(2)(g)

According to Patrol Guide Procedure 203-11, officers are required to use the minimum amount of force necessary to overcome resistance when placing a person under arrest (16 Board Review). Patrol Guide Procedure 203-12 forbids officers from using deadly physical force unless they have “probable cause to believe they must protect themselves or another person present from imminent death or serious physical injury” (17 Board Review)

§ 87(2)(g)

§ 87(2)(g)

Squad: 13

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____

Title/Signature

Print

Date